



File No.: EXP202206891

## RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On February 16, 2022, a complaint was filed with entry registration number 000007128e2200007094 before the Spanish Agency for Data Protection against ES.

LOCALE.ONLINE (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that when searching for her name and surname on search engines, two results are offered that publish her name and surname, postal address, photos of her home, directions to get there, and the assignment of the profession of real estate agent, the latter being completely false.

The complainant has requested deletion, sending emails to the only contact addresses provided on the referred websites (connect@locale.online and connect@top10place.com) on 11/24/21, without having received a response.

Attached to the notification are:

- A copy of the emails sent to the contact addresses provided on the referred websites (connect@top10place.com) dated 11/24/21.
- A copy of the complaints submitted via the "Contact Us" link on both websites.

SECOND: On May 3, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

### RESULT OF THE INVESTIGATION ACTIONS

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

2/8

On July 14, 2022, it was confirmed that the link to the complainant's personal information \*\*\*URL.1 is still active.

It was verified that the website ES. LOCALE.ONLINE does not have any identification of its owner or privacy policies, and the data update form leads to an infinite loop that does not allow modification of that information.

Investigations were conducted on the internet using the WHOIS tool regarding the holder of the registration of the reported website and the registrar of the claimed server, yielding the following results:

- a. ES. LOCALE.ONLINE is registered by CLOUDFLARE, INC., with a country of registration in India.
- b. Regarding the hosting of these servers, investigations have resulted in the mentioned website being hosted on the systems of CLOUDFLARE, INC. based in the United States and subscribed to the "Privacy Shield Framework" agreement.
  - The hosting service for "ES. LOCALE.ONLINE" is provided by CLOUDFLARE, INC., with servers located in Singapore.

Therefore, it cannot be determined who the owners of the referred website are.

On July 29, 2022, a request was made to CLOUDFLARE, INC. via international certified mail, which has not been delivered nor has a response been received as of the date of signing this report.

In parallel, a request for information was sent to CLOUDFLARE, INC. via email to the address:

privacyquestions@cloudflare.com, to which the request sent by international certified mail was attached.

An automatic response was received indicating, among other options, to use the email address abuse+law@cloudflare.com in case of having contacted them to request information in response to a legal process.

"If you are contacting us to request disclosure of information in response to legal process, please contact abuse+law@cloudflare.com."

On August 5, 2022, a response was received from CLOUDFLARE, INC. sent from the email address dpo@cloudflare.com stating that their records do not indicate that the owners are European citizens, although they do not guarantee the accuracy of that information ("In addition, we note that our records do not indicate that the owners are Europeans citizens. However, please note that Cloudflare makes no warranties as to the accuracy of any of this information.").

Regarding the requested information, CLOUDFLARE, INC. provides that:

Hosting provider:

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
3/8

- LOCALE.ONLINE is hosted at abuse@linode.com

Domain registrant:

- LOCALE.ONLINE is registered at locale\_online@zorus.in

On January 30, 2023, a request for information was sent to LINODE.COM through a form established to report abuses on their website: <https://www.linode.com/legal-abuse>.

Upon submitting the completed form to report the abuse, the website redirects back to the beginning of the report submission process, without registering the request.

For this reason, the request for information is sent again, this time via email to the address provided by CLOUDFLARE, INC.: abuse@linode.com, without receiving a response.

## LEGAL GROUNDS

I

### Competence

According to the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

4/8

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of its representative;

- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

5/8

- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

III

Right to Erasure ("the right to be forgotten")

Article 17 of the GDPR provides as follows:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this processing is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21, paragraph 2;

- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

#### IV

##### Principles relating to processing

Letter d) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

- d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy');

#### V

##### Lawfulness of processing

Article 6 of the GDPR details in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

7/8

- d) the processing is necessary to protect vital interests of the data subject or another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provisions of item f) of the first paragraph shall not apply to processing carried out by public

authorities in the exercise of their functions.

VI

#### Conclusion

Despite the actions taken by this Agency, it has not been possible to obtain ownership of the claimed website.

The domain registrar and the host of the claimed website, by providing misleading information about the claimant without their consent, is located in India.

Regarding the request for deletion made by the claimant, it must be stated that the link to the claimant's personal information is no longer operational as of the date of signing this resolution.

Thus, as it has not been possible to verify the identity of the data controller as indicated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, C/ Jorge Juan, 6, [www.aepd.es](http://www.aepd.es), 28001 – Madrid, [sedeagpd.gob.es](http://sedeagpd.gob.es), in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)